



DECISION

Complaint No. : POS/TTA/240/2025

Name and address of the complainant : Mst. Mumtaz Begum d/o Muhammad Jaffer Jokhio, R/o Village Atta Muhammad Jokhio, U.C. Gul Manda, Taluka & District Thatta

Name of the Agency Complained against : District Accounts Officer, Thatta

Name & Designation of Investigating Officer : Mr. Haroon Ahmed Khan, Regional Director, Thatta

Vetted by : Mr. Shahid Ahmed Hashmi - Consultant-Legal.

Subject : **WITH-HOLDING OF FAMILY PENSION OF THE COMPLAINANT BY THE ACCOUNTS OFFICE THATTA.**

THE COMPLAINT:

Mst. Mumtaz Begum, D/o Muhammad Jaffer Jokhio, R/o Village Atta Muhammad Jokhio, U.C. Gul Manda, Taluka & District Thatta filed this complaint dated 03.09.2025 against the Account Officer (DAO), Thatta for stopping payment of her family pension since May 2025. Despite pursuing the matter with the agency, she failed to get result. Therefore, she sought intervention of this forum for redressal of her grievance.

PROCEEDINGS:

2. The complaint was admitted and taken up with the Agency vide notice dated 16.09.2025 followed by another notice dated 08.10.2025. In response a report, dated 09.10.2025 has been submitted by the Agency. The District Accounts Officer vide report dated 09.10.2025 reported that the pension was stopped after the office received an application from Mr. Muhammad Ishaque Kokhio, brother-in-law of the complainant, informing about solemnization of her marriage with his brother Muhammad Shareef Jokhio in 2003.

3. As per report, such application was referred to Deputy Commissioner Thatta for conducting an inquiry for confirming her marital status. Additional Deputy Commissioner verified her marital status in his report dated 15.05.2025.

REJOINDER:

4. Rejoinder called. The complainant in her rejoinder dated 16.10.2025, while defending her marital status contested her case that marriage cannot deprive her from drawing family pension. She relied upon Honorable Supreme Court's decision passed in Civil Petition No. 616-k of 2025, in which the honorable Court has suggested about revisiting the pension law to

remove marital status as a condition for entitlement. The rejoinder highlighted her strained relationship with her husband who used to beat her and did not care about her. The rejoinder revealed that under the circumstances she had approached the Family Judge Thatta for maintenance from her husband. The court, while fixing Rs.3500/= per month maintenance allowance to her allowed her suit No.113 of 2023, holding that ***“Wife is entitled for maintenance if marriage is intact”*** on the strength of Supreme Court reported judgment PLD 2014 SC 154.

FINDING:

5. The careful perusal of the records, safely conclude as follows:

- i. The complainant being a married woman was receiving a family pension fraudulently without her entitlement. She concealed her marital status from the outset and applied the pension as unmarried daughter of the deceased employee;
- ii. Under the family pension scheme, sons above the age of 18 years and married daughters are not eligible for pension benefits;
- iii. The case law on which the complainant has placed her reliance is misconceived. Until the law is amended, pension eligibility and entitlement cannot be misconstrued to protect wrongdoings.

DECISION:

6. In view of the above, the instant complaint is dismissed being of no substance.

“Given under my hand & seal of office”



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 10th November, 2025